(218)

IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - I, CHENNAI

Under Sections 230 to 232 of the Companies Act, 2013
In the matter of *Scheme of Arrangement*

CA(CAA)/57(CHE)2022

CASAGRAND STARPARK PRIVATE LIMITED
CIN NO: U74999TN2016PTC112459
5TH Floor, NPL Devi,
New N0-111,L.B.Road,
Thiruvanmiyur, Chennai – 600 041

... Applicant / Transferor Company

And

CHENGALPATTU LOGISTICS PARKS PRIVATE LIMITED
CIN NO: U45309TN2020PTC139888
No.258, Satahari Village,
Thiruvallur TamilNadu- 631 203.

... Applicant/ Transferee Company

And

Their Respective Shareholders and Creditors

*Order Pronounced **13th February 2023***

CORAM

JUSTICE (RETD.) RAMALINGAM SUDHAKAR, PRESIDENT
SAMEER KAKAR, MEMBER (TECHNICAL)

For Applicant(s): R. Inbaraju, Advocate

ORDER

Per: **SAMEER KAKAR, MEMBER (TECHNICAL)**

This is a Joint Company Application Viz., CA(CAA)/57(CHE)/2022 filed by the Applicant Companies, namely **CASAGRAND STARPARK PRIVATE LIMITED** (for brevity "Transferor Company") and **CHENGALPATTU LOGISTICS PARKS PRIVATE LIMITED** (for brevity "Transferee Company") under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Arrangement (hereinafter referred to as the "SCHEME") proposed by the Applicant Companies. The said Scheme is also appended as "Annexure – 11" to the CA/CAA/57(CHE) 2022.

2. The Applicant Companies in this Company Application has sought for the following reliefs;

	EQUITY SHAREHOLDERS	SECURED CREDITORS	UNSECURED LOAN CREDITORS	UNSECURED TRADE CREDITORS
TRANSFEROR COMPANY	To Dispense with	To Dispense with	To Dispense with	To Dispense with
TRANSFEREE COMPANY	To Dispense with	To Dispense with	Nil	To Dispense with

3. From the certificate of incorporation filed, it is evident that the Transferor Company is a Private limited company incorporated under the provisions of Companies Act, 2013 on 12.09.2016. The

Authorized, issued and Paid-up share capital of the Transferor Company as on 31.03.2022 is as under:

Particular	Rupees (INR)
Authorized Share Capital	
1,30,000 equity shares of Rs.10/- each	13,00,000
Issued, Subscribed and Paid-up Share Capital	
1,000 equity shares of Rs.10/- each, fully paid-up	10,000

4. From the certificate of incorporation filed, it is evident that the Transferee Company is a Private limited company incorporated under the provisions of Companies Act, 2013 on 04.12.2020.The Authorized, issued, Subscribed and paid up share capital of the Transferee Company as on 31.03.2022 is as under:

Particular	Rupees (INR)
Authorized Share Capital	
1,30,000 equity shares of Rs.10/- each	13,00,000
Issued, Subscribed and Paid-up Share Capital	
1,00,559 equity shares of Rs.10/- each fully paid up	10,05,590/-

5. Affidavit in support of the above application was sworn for and behalf of the applicant Companies has been filed by Mr. Prasad Motiram Kotpati in the capacity of Director/ Authorised Signatory for the Transferor Company and by one Mr. C.Velan in the capacity of Director/ Authorised Signatory for the Transferee Company along with the application and it is also represented that the Registered office of the Transferor Company is situated at 5th Floor,

NPL Devi, New No.111, L.B.Road, Thiruvanmiyur – 600 041 and the Registered office of the Transferee Company is situated at No.258, Satahrai Village, Thiruvallur – 631 203 within the territorial jurisdiction of the Bench of this Tribunal and falling within the purview of Registrar of Companies, Chennai.

6. **CASAGRAND STARPARK PRIVATE LIMITED**
TRANSFEROR COMPANY

a) There are 4 (Four) Equity Shareholders and list of shareholders to this effect is placed at page Nos 208 of the typed set filed with the application and consent by way of Affidavits given by all the equity shareholders is placed at Page Nos.209 to 220 and sought for dispensation with holding of meeting.

b) There is 1 (One) Secured Creditor and the certificate issued by the Chartered Accountant to this effect is placed at Page No. 221 and consent by way of Affidavits given by sole Secured Creditor is placed at Page Nos.222 to 226 and sought for dispensation with holding of meeting.

c) There are 3 (Three) Unsecured Loan Creditors and the certificate issued by the Chartered Accountants to this effect is placed at Page Nos. 227 of the typed set filed with the application and the consent Affidavits given by all the unsecured creditors Constituting 100% of the total value of credit have been obtained are placed at Page Nos. 228 to 240 of the typed set filed along with the Application and sought for dispensation with holding of meeting.

d) There is 1 (One) Unsecured Trade Creditor and the certificate issued by the Chartered Accountants to this effect is placed at Page Nos. 241 of the typed set filed with the application and the consent Affidavits given by all the unsecured creditors Constituting 100% of the total value of credit have been obtained are placed at Page Nos. 242 to 246 of the typed set filed along with the Application and sought for dispensation with holding of meeting.

7. **CHENGALPATTU LOGISTICS PARKS PRIVATE LIMITED TRANSFEREE COMPANY**

a) There are 2 (Two) Equity Shareholders and the list of shareholders to this effect is placed at Page No. 247 of the typed set filed with the application and consent by way of Affidavits given by both the equity shareholders is placed at Page Nos.248 to 255 and sought for dispensation with holding of meeting.

b) There are 2 (Two) Secured Creditors and the certificate issued by the Chartered Accountant to this effect is placed at Page No.256 of the typed set filed along with the Application and consent by way of Affidavit given by the both the Secured Creditors is placed at Page Nos.257 to 269 and sought for dispensation with holding of meeting.

c) There are NIL Unsecured Loan Creditor and the certificate issued by the Chartered Accountant to this effect is placed at Page No. 270 of the typed set filed along with the Application. Hence the necessity of Convening, holding and conducting the meeting does not arise.

d) There is 3 (Three) Unsecured Trade Creditors and the certificate issued by the Chartered Accountants to this effect is placed at Page Nos. 271 of the typed set filed with the application and consent by way of Affidavit given by all the Unsecured Trade Creditors is placed at Page Nos.272 to 284 and sought for dispensation with holding of meeting.

8. We have perused the application and the connected documents / papers filed therewith including the Scheme contemplated by the Applicant companies.

9. The Applicant Companies has filed its Memorandum and Articles of Association *inter alia* delineating its object clauses as well as their last available Audited Annual Accounts for the year ended 31.03.2022. It is relevant to refer to the order of this Tribunal dated 10.08.2022, wherein it was recorded that there is some mismatch in the Unsecured Creditors at Page No.87 and Page No.227 of the Application Typeset and the Learned Counsel for the Petitioner Companies sought time to get clarification in this matter.

10. Thereafter, a Memo dated 11.10.2022 vide S.R.No.5570 wherein additional documents have been filed with respect to Provisional Financial Statements for the period ended on 30.06.2022 as a Supplemental Accounting statement. Further, on 07.12.2022 this Tribunal has recorded in the order that there is

no affidavit certifying the Supplemental Accounting Statement as on 30.06.2022 and just by way of Memo and directed the Learned Counsel for the Applicant Companies to file the same by way of an affidavit.

11. The Learned Counsel for the Applicant Companies Complied the order of this Tribunal dated 07.12.2022 filed an affidavit dated 19.12.2022 vide S.R.No.6598 attaching the Provisional Financial Statements as on 30.06.2022 of the applicant companies and thereby further explaining the position of creditors of the said Provisional Financial Statements as on 30.06.2022. Accordingly, the above said Affidavit is taken on record.

12. The Board of Directors of the Applicant Companies vide meeting held on 15th April 2022 had unanimously approved the proposed Scheme as contemplated above and copies of resolutions passed thereon have been placed on record by the applicant companies.

13. The Appointed date as specified in the Scheme is **01.04.2022**.

14. The Statutory Auditors of the Transferor and Transferee Company have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the rules made thereunder and

certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013.The said Certificates of the Statutory Auditors in this regard is placed at **"Annexure - 12 & Annexure - 13"** of the Applicant Companies typed set of Documents filed along with the application.

15. Taking into consideration the application filed by the Applicant Company and the documents filed therewith as well as the position of law, this Tribunal propose to issue the following directions: -

A. IN RELATION TO THE TRANSFEROR COMPANY:

(i) **With respect to Equity shareholders:**

Since it is represented by the Transferor Company that there are 4 Equity shareholders in the Company whose consents by way of Affidavits have been obtained from all the Equity Shareholders and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with***.

(ii) **With respect to Secured Creditors:**

Since it is represented by the Transferor Company that there is One secured Creditor in the Company whose consents by way of Affidavits have been obtained from the sole Secured Creditor and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

(iii) **With respect to Unsecured Loan Creditors:**

Since it is represented by the Transferor Company that there are 3 Unsecured Loan Creditors in the Company and the consent Affidavits obtained from unsecured Loan creditors constituting 100% of the total value of credit having been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with***.

(iv) **With respect to Unsecured Trade Creditors:**

Since it is represented by the Transferor Company that is 1 Unsecured Trade Creditor in the Company and the consent Affidavits obtained from Sole Unsecured Trade creditor constituting 100% of the total value of credit having been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

B. IN RELATION TO THE TRANSFEREE COMPANY:

(i) **With respect to Equity Shareholders:**

Since it is represented by the Transferee Company that there 2 Equity shareholders in the Company whose consents by way of Affidavits have been obtained from both the Equity Shareholders and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with***.

(ii) **With respect to Secured Creditors:**

Since it is represented by the Transferee Company that there are two secured Creditors in the Company whose consents by way of Affidavits have been obtained from both the Secured

Creditors and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with***.

(iii) **With respect to Unsecured Loan Creditors:**

Since it is represented by the Transferee Company that there is NIL Unsecured Loan Creditor in the Company, hence the necessity of Convening, holding and conducting a meeting ***does not arise***.

(iv) **With respect to Unsecured Trade Creditors:**

Since it is represented by the Transferor Company that there are Three Unsecured Trade Creditors in the Company and the consent Affidavits obtained from all Unsecured Trade creditors constituting 100% of the total value of credit having been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

16. The Applicant Companies shall submit the Company Petition(s) within 14 days from the date of receipt of this order. Accordingly, the Application stands **allowed.**

- Sd -

SAMEER KAKAR
MEMBER (TECHNICAL)

- Sd -

JUSTICE RAMALINGAM SUDHAKAR
PRESIDENT

SriramAnanth.V